

March 28, 2012



U.S. Department
of Transportation

East Building, PHH – 30
1200 New Jersey Avenue, Southeast
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 7823
(FIFTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of the materials listed in paragraph 6. below, in non-DOT specification cylinders conforming to DOT Specification 4BW, except as specified herein. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.202, 173.205 and 176.3 in that non-DOT specification cylinders are not authorized, except as specified herein.
5. BASIS: This special permit is based on the Pipeline and Hazardous Materials Safety Administration's (PHMSA) editorial review under § 107.121 initiated on December 4, 2008, and additional information dated March 15, 2011.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Antimony pentafluoride	8	UN1732	II
Flammable liquid, toxic, corrosive, n.o.s. (Boron trifluoride diethyl etherate)	3	UN3286	II
Iodine pentafluoride	5.1	UN2495	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a non-DOT specification welded stainless steel cylinder having a water capacity of 1,000 pounds, service pressure 240 psig, outside diameter 30 inches, minimum sidewall thickness .250 inches and minimum head thickness .225 inches. The cylinder must be in accordance with drawing 54-351-57-1 Revision 2, dated February 21, 1978, or Manchester Drawing 140157-IF5, dated September 8, 2004, on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA), and must conform with DOT Specification 4BW (§§ 178.35 and 178.61) except as follows:

§ 178.61(b) *Authorized steel.*

Steel must be type 316, 316L or 304L, stainless.

§ 178.61(h) *Openings in cylinders.*

Add

(5) Safety relief devices are prohibited.

§ 178.61(j) *Physical tests.*

Add

(4) As an alternative, specimen may be taken from a formed head and welded ring made from the same material and heat treated to the same conditions as the represented lot.

§ 178.61(l) *Test of welds.*

* * *

(a) A specimen must be cut from one cylinder of each lot of 200 or less or as an alternate, a specimen may be cut from a formed head and welded ring made from the same material and heat-treated to the same conditions as the representative lot. The specimen must be taken across the longitudinal seam and prepared and tested in accordance with and must meet the requirements of CGA Pamphlet C-3.

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§ 178.35(f)(1)(i) *Marking.*

Cylinders are to be marked "DOT-SP 7823" instead of "DOT-4BW" followed immediately by the service pressure: for example:

"DOT-SP 7823-240".

b. TESTING - Each cylinder must be reinspected and hydrostatically retested every 5 years in accordance with § 180.205 as prescribed for DOT Specification 4BW cylinders.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
 - c. Each valve outlet must be sealed by a threaded cap or a threaded plug.
 - d. Cylinder valves must be protected as specified for corrosive gases in § 173.301(h).
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat.

1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: kah